W013773-103126 - California Public Records Request

Message History (3)

On 11/10/2026 3:15:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013773-103126
Body:

RE: PUBLIC RECORDS REQUEST of October 31, 2026, **Reference # W013773-103126**

Dear Brian C,

The City received the following request from you on October 31, 2026.

1. The following files, each named as an attachment in an email the City produced under W013585-100626 and not included in the production, in the form transmitted: (a) "AxonOutpost-Lightpost Bundles.pdf", attached to Patrick Newton's February 10, 2026 email "Axon Fixed ALPR-San Mateo PD"; (b) "Draft_Agenda_Report_Axon_Outpost_18_Month_Trial.docx", attached to Lt. Riccardi's July 28, 2026 email "AR for Axon Outpost"; (c) "Updated_Agenda_Report_Axon_Outpost_ALPR_Only.docx", named in Lt. Riccardi's July 29, 2026 email "Axon AR"; (d) "San Mateo PD Axon council session.pdf", attached to Lt. Riccardi's August 19, 2026 email "Axon briefing for council". Gov. Code § 7927.500 reaches "preliminary drafts, notes, or interagency or intraagency memoranda that are not retained by a public agency in the ordinary course of business, if the public interest in withholding those records clearly outweighs the public interest in disclosure." Each of these files was transmitted by City email and retained there, which is where the City located and produced the transmitting message. If the City withholds any of them, please identify the exemption applied to each file and, for § 7927.500, the public interest served by withholding it.
Please, be advised that the responsive records were provided as part of a supplemental release associated to your original request #W013585-100626.
2. For each record withheld in whole or in part under the October 30, 2026 determination: the record identifying it (date, sender, recipients, subject line or title, and the item of W013585 it responds to) and the exemption applied to it, including any withholding list, privilege log or review notes prepared in making the determination, and the record identifying the persons responsible for it. Requirement: Gov. Code § 7922.540(b) provides that "[t]he notification of denial shall set forth the names and titles or positions of each person responsible for the denial," and § 7922.540(c) provides that "[a]n agency shall justify withholding any record by complying with Section 7922.000." A "no responsive records" response to this item would mean the City has no record of which records it withheld or who decided to withhold them. If no such record exists, I ask that the City state the date, sender, recipients and subject of each withheld record, so that the scope of the withholding can be understood.
Your request seeks the creation of a privilege log identifying specific records that have been withheld. The California Public Records Act does not require a public agency to create a privilege log or other index identifying each individual record withheld from disclosure. Rather, the agency must identify the legal basis supporting nondisclosure. (*Haynie v. Superior Court* (2001) 26 Cal.4th 1061, 1075.)
3. Any withheld record that was sent to or received from an axon.com address, or that was otherwise shared with Axon Enterprise, Inc. or any person outside the City. Evidence Code § 954 protects "a confidential communication between client and lawyer," and under Evidence Code § 912(a) the privilege "is waived with respect to a communication protected by the privilege if any holder of the privilege, without coercion, has disclosed a significant part of the communication or has consented to disclosure made by anyone." If the City withholds under § 954 a communication that was sent to or received from Axon, please identify the basis on which the privilege applies to that communication.

No responsive records

We have made a good faith and diligent effort to complete your request. The city has completed its response to your request and now considers this record request
W013773-103126 closed.

Sincerely,

Elizabeth Briones
San Mateo Police Records Supervisor
Police
(650) 522-7710

On 10/31/2026 11:17:44 AM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 10/31/2026 and given the reference number **W013773-103126** for tracking purposes.

Record(s) Requested: **Subject: Public Records Act request — attachments to emails produced under W013585-100626, and identification of the records withheld**

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department. This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

As you are aware, on October 30, 2026 the City closed request W013585-100626 with a production of 30 files and the statement that "Portions of your request are being withheld pursuant to California Government Code section 7927.705 ... This includes attorney-client privileged communications pursuant to California Evidence Code section 954." The determination does not identify the records withheld, the item of the request they fall under, or their number. Items 1 and 2 of that request asked for

communications "with attachments."

Please respond to each item separately.

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Where a responsive record contains exempt content, please produce the reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)). Where a record exists in electronic form, please provide it in its native format; for the two .docx files, the native file is requested. If any item yields no records, please say so for that item and continue with the rest.

Thank you,

Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

On 10/31/2026 11:17:42 AM, Brian C wrote:

Request Created on Public Portal